



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10328

EXPIRATION DATE: September 1, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. **GRANTEE:** PPG Industries, Incorporated
Pittsburgh, Pennsylvania
2. **PURPOSE AND LIMITATION:** This exemption authorizes the transportation in commerce of a Division 2.1 material in DOT Specification 105J300W or 112J340W tank cars equipped with a safety relief device having a start-to-discharge pressure of 82.5 percent of the tank test pressure. This exemption provides no relief from any regulations other than as specifically stated.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR Part 107 Appendix B to Subpart B provision 2 of the paragraph entitled Packages, Containers, Shipments; 172.203(a); 173.31(a); 179.100-15; and 179.101-1.
5. **BASIS.** This exemption is based on PPG Industries, Incorporated's application of December 18, 1989, submitted in accordance with 49 CFR 107.103, and the public proceeding thereon.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Ethyl Chloride	2.1	UN 1037	N/A

7. **PACKAGING(S) and SAFETY CONTROL MEASURES:**

- a. Packaging prescribed are DOT Specification 105J300W or 112J340W tank cars equipped with a safety relief device having a set-to-discharge pressure of 82.5 percent of the rated tank test pressure.
- b. The total valve discharge capacity must be sufficient to prevent build-up of pressure in the tank in excess of 90 percent of the rated tank test pressure.

- c. Safety relief devices may be set at the following pressures:

Safety relief valve, p.s.i.	DOT specifications	
	105J300W	112J340W
Start-to-discharge pressure	247.5	280.5
Start-to-discharge tolerance	± 7.5	± 8.4
Vapor tight pressure (minimum)	196	224
Flow rating pressure	270	306

- d. Each tank car operating under the terms of this exemption must be marked DOT-E 10328 in four inch letters and numerals on a contrasting background above the DOT specification number.
- e. Each tank car operating under the terms of this exemption must be stenciled with the safety relief valve setting in accordance with Appendix C of the Association of American Railroad's Specification for Tank Cars.
- f. The safety relief valves for tank cars operating under the terms of this exemption shall be tested to the pressures indicated in the table above.

8. SPECIAL PROVISIONS.

- a. The requirements of 49 CFR 172.203(a) and provision 2 of the paragraph entitled Packages, Containers, Shipments of Appendix B to Subpart B of Part 107 are hereby waived.
- b. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

- a. The Federal Railroad Administration is to be notified if any unusual incident occurs, such as derailment or exterior tank car damage, during the movement by contacting the:

Federal Railroad Administration
Office of Safety Enforcement, RRS-12
Hazardous Materials Division
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

11. **COMPLIANCE.** Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

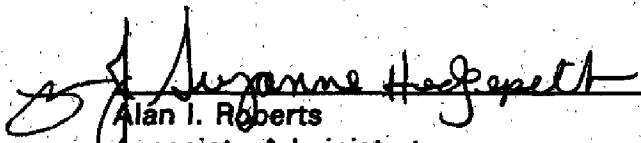
- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. **REPORTING REQUIREMENTS.**

- a. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 10 1995

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety,
Research and Special Programs Administration, Department of Transportation,
Washington, D.C. 20590.
Attention: DHM-31.

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The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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